

25SMCV05046 25SMCV05046

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-17

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The court will inquire.

Defendant filed a motion to quash on September 8, 2026. The current hearing date is February 11, 2027. The court's understanding is that there are, and were, a number of dates in January for the hearing. The court will ask whether, if that is so, why defendant picked a date in February.

Depending on the answer to that question, the court might advance the hearing by a month. The problem with advancing the hearing to October or November is, frankly, the court's calendar. Every case is important, but this court tends to be in trial most of the time. When the court is in trial, the jury will take precedence over law and motion, and, accordingly, the court must place a cap on the number of motions it can hear in a given day. If the court "overclocks," then the court will have to have the jury wait in the hall (which is unfair to a jury that is essentially volunteering time) or continue matters on calendar to a later date, which could be a long way off. The caps have increased the length of time to hearings—even for motions that ought to be heard quickly. This seems inevitable, though, as the court's docket has increased from 800, when it took over the department in 2020, to over 1300 now. So the court does the best it can, but there is only so much it can do.

The court also wonders whether there is an agreement that can be reached. Dr. Bender is obviously aware of the case and does not claim a lack of minimum contacts with California. The issue is just the manner of service. One possibility is that Dr. Bender could agree that service is complete as of today and have 30 days from today to answer or otherwise respond.

That would moot the underlying motion without doing harm or prejudice to anyone. Just a thought. The court obviously cannot require Dr. Bender to so agree, but it does seem like the most efficient way to resolve the service issue.